



PROCEDURES FOR PREVENTION OF BRIBERY AND CORRUPTION

Customised from the **EACC Model Procedures (July 2024)**, developed pursuant to section 9 of the **Anti-Bribery Act, Cap. 79B**

Institution	Demo County Licensing Office (Institution ID DEMO-003)
Version	1.0 - approved
Approval	Approved by the Corruption Prevention Committee (CPC) at its special meeting of 12 May 2026, Min. CPC/SP/03/2026, and adopted by the Accounting Officer on 12 May 2026
Effective from	12 May 2026 (applies throughout FY 2026/2027)
Effective to	Until superseded; next scheduled review May 2028
Status	Active
Designated senior officer	Peter Kiprono, Head of Compliance and Senior Integrity Assurance Officer

1.0 Commitment

The Demo County Licensing Office is committed to implementing bribery and corruption prevention measures in adherence to the Anti-Bribery Act, Cap. 79B, the Bribery Regulations, 2022, the Guidelines to Assist Public and Private Entities in the Preparation of Procedures for Prevention of Bribery and Corruption, 2022, and these Procedures. The Office maintains zero tolerance to bribery and corruption and is committed to prevention, detection, deterrence, reporting and appropriate action.

2.0 Objective

These Procedures are the practical tool through which the Office prevents bribery and corruption in the issuance of business and trade licences, the inspection of licensed premises, the collection of licence fees and penalties, and all support services.

3.0 Scope

These Procedures apply to the Accounting Officer, management, all employees (including inspectors, licensing clerks and revenue staff), interns and attachés, and to third parties and stakeholders who transact with the Office, including licence applicants, traders, suppliers and contractors.

4.0 Definitions

Terms used in these Procedures (advantage, bribery, corruption, designated officer, enforcement structure, facilitation payment, informant, implementation structure, senior officer, stakeholder, third parties, witness and whistle blower) bear the meanings assigned in the EACC Model Procedures and the Anti-Bribery Act. In addition, **inspection schedule** means the quarterly list of premises, dates and assigned inspection teams approved by the Head of Inspections and Enforcement and published under section 8.2.

5.0 Legal framework

These Procedures are developed under section 9(1) of the Anti-Bribery Act. Offences under the Act include giving a bribe (s.5), receiving a bribe (s.6), bribery of a foreign public official (s.8), engaging in activities intended to enable bribery (s.13), failure to report bribery (s.14), and victimisation of whistle blowers or witnesses (s.21). Officers are also bound by the Conflict of Interest Act, 2025, including the duty to recuse (s.30) and the restrictions on gifts (s.16).

6.0 Relevant policies

- Code of Conduct and Ethics for staff of the Office (2024)
- Conflict of Interest Policy (2026), including per-application declarations for licence approvals

- Gifts and Hospitality Policy and Register of Gifts
- Whistle Blower Protection Policy with non-retaliation clause
- Revenue Collection and Cash Handling Manual
- Public Procurement and Asset Disposal Act, 2015 and the Public Finance Management Act, 2012

7.0 Bribery and corruption risk assessment and management

The Office shall conduct a comprehensive bribery and corruption risk assessment covering its core mandate (licensing, inspections and enforcement, revenue) and all support services, using the EACC Practical Guide for Corruption Risk Assessment and Management and a 1 to 5 probability and impact scale. The assessment and the resulting Anti-Bribery and Corruption Mitigation Plan shall be overseen by the Accounting Officer, approved by the CPC, reviewed at least annually, and documented.

8.0 High-risk areas and specific controls

8.1 The following are designated high-risk areas: inspection of licensed premises; issuance and renewal of licences; assessment and collection of fees and penalties; procurement; recruitment; licence records; use of official vehicles; gifts and hospitality; conflicts of interest; and facilitation payments.

8.2 **Inspections.** All routine inspections shall be conducted according to a quarterly inspection schedule published on the Office notice board and website on or before the first day of each quarter. Any unscheduled or rescheduled inspection requires prior written authorisation by the Head of Inspections and Enforcement stating the reason. Inspections shall be conducted by teams of at least two officers. Penalties shall not be settled in cash at premises.

8.3 **Training.** Staff in affected functions (inspections and enforcement, licensing services and revenue) shall be trained on these Procedures within the first quarter of each financial year and on appointment. Attendance registers shall be maintained by Human Resources.

8.4 **Licensing.** Applications shall be processed in order of receipt as recorded in the application register. Approving officers shall declare any private interest in an application and recuse themselves in accordance with section 30 of the Conflict of Interest Act.

9.0 Managing third parties

Contracts and licence application forms shall include anti-bribery provisions and a declaration by the applicant or supplier that they shall refrain from bribery and other forms of corruption. Due diligence proportionate to risk shall be conducted on suppliers. These Procedures shall be displayed at all service counters.

10.0 Reporting mechanisms

Reports may be made in person to the designated senior officer; in writing to the Accounting Officer at the address above; by email to integrity@demo-003.example.invalid; through the sealed reporting boxes at the main service hall and the inspections office; or anonymously. Reports may also be made directly to the Ethics and Anti-Corruption Commission through the channels published on the Commission's website. Reports shall be received, acknowledged and recorded in a register; the designated senior officer shall submit the report to the enforcement structure and the Commission within 24 hours; the enforcement structure shall inquire and recommend action; and the outcome shall be communicated to the Commission within 7 days of determination. Feedback shall be given to the informant where applicable.

11.0 Protection of whistle blowers, informants and witnesses

The Office shall keep the identity of whistle blowers, informants and witnesses confidential, provide a channel for reporting retaliation, act on any retaliation, and apply the non-retaliation clause of the Whistle Blower Protection Policy.

12.0 Communication and training

These Procedures shall be circulated to all staff, posted on the Office website and displayed at service points. Sensitisation shall be carried out at least once a year, in addition to the first-quarter training required by section 8.3.

13.0 Collaboration

The Office shall collaborate with the Commission and other county entities for joint planning, information sharing, peer review and capacity building.

14.0 Implementation structure and designated responsibility

Role	Holder	Responsibility under these Procedures
Accounting Officer (implementation structure)	Rose Atieno, Chief Officer	Overall accountability; chairs the CPC; approves strategies, resources and reports to EACC
Designated senior officer	Peter Kiprono, Head of Compliance and Senior IAO	Day-to-day implementation; receives reports; protects whistle blowers; Secretary to the CPC; chairs the IAO Committee
Corruption Prevention Committee	Chaired by the Accounting Officer	Oversight of risk assessment, mitigation plan and quarterly reporting; meets at least quarterly
Integrity Assurance Officers Committee	IAOs from each functional area	Monitors implementation in each function; meets at least quarterly; reports to the CPC
Enforcement structure	Human Resource Advisory Committee	Inquiry into and disciplinary action on violations

15.0 Monitoring, evaluation and review

Implementation shall be monitored quarterly by the CPC using the EACC progress reporting template, and these Procedures shall be reviewed every two years or earlier where the risk assessment so requires. Compliance shall be assessed periodically using the EACC compliance checklist.

DECLARATION OF COMMITMENT TO IMPLEMENT THE REQUIREMENTS OF THE ANTI-BRIBERY ACT, REGULATIONS, GUIDELINES AND THESE PROCEDURES

The Demo County Licensing Office is committed to implement these Procedures on prevention of bribery and other forms of corruption developed pursuant to section 9 of the Anti-Bribery Act, Cap. 79B.

Head of Entity / Accounting Officer



Name: Rose Atieno
Designation: Chief Officer, Demo County Licensing Office
Date: 12 May 2026
Fictional signature for demonstration

Designated Senior Officer



Name: Peter Kiprono
Designation: Head of Compliance and Senior IAO
Date: 12 May 2026
Fictional signature for demonstration

Approval details: CPC special meeting, 12 May 2026, Min. CPC/SP/03/2026. Date of next review: May 2028.